

search of his vehicle, transported the plaintiff to the 48th Precinct, where they subjected him to a strip and visual cavity search, and subsequently transported the plaintiff to Bronx Central Booking, where he continued to be imprisoned until his arraignment on the night of October 2 - October 3, 2014, when he was released on his own recognizance. On August 20, 2015, the charges against the plaintiff were adjourned in contemplation of dismissal.

3. The defendants' actions were unlawful, and the plaintiffs bring this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), and 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violation of the plaintiffs' constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution..

5. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claims occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants Guy Gargano, Jodi Brown and Mack Lipinski can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

6. Plaintiff Nelson Gomez-Ortiz is a citizen of the United States who resides in the County of Bronx, City and State of New York.

7. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

8. At all times relevant herein, defendant The City of New York maintained a police department.

9. Defendant Guy Gargano is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

10. At all times relevant herein, defendant Guy Gargano was acting within the scope of his employment by defendant The City of New York.

11. Defendant Jodi Brown is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

12. At all times relevant herein, defendant Jodi Brown was acting within the scope of his employment by defendant The City of New York.

13. Defendant Mack Lipinski is a natural person who, upon information and belief, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

14. At all times relevant herein, defendant Mack Lipinski was acting within the scope of his employment by defendant The City of New York.

15. Defendant "Jane Doe" is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

16. At all times relevant herein, defendant "Jane Doe" was acting within the scope of her employment by defendant The City of New York.

NOTICE OF CLAIM

17. On October 30, 2015, plaintiff Nelson Gomez-Ortiz served on the Comptroller of

the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claims arose.

18. Plaintiff Nelson Gomez-Ortiz' motion pursuant to New York General Municipal Law §50-e(5) to extend his time to serve a Notice of Claim was granted by an Order of New York State Supreme Court Justice Mitchell J. Danziger dated December 3, 2015, which deemed the plaintiff's Notice of Claim to have been timely served *nunc pro tunc*.

19. More than thirty days have elapsed since the plaintiff's Notice of Claim was served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

20. Plaintiff incorporates by reference paragraphs 1 through 19 of this complaint as though the same were set forth fully herein.

21. On October 1, 2014, plaintiff Nelson Gomez-Ortiz was lawfully operating a motor vehicle at the intersection of Belmont Avenue and E. 179th Street, in the borough of the Bronx, City and State of New York.

22. At the above time and place, one of the individual defendants approached plaintiff Nelson Gomez-Ortiz' vehicle with gun drawn.

23. Plaintiff Nelson Gomez-Ortiz had not committed any crime or offense.

24. The individual defendants physically removed plaintiff Nelson Gomez-Ortiz from his motor vehicle.

25. Defendant Mack Lipinski conducted a search of plaintiff Nelson Gomez-Ortiz' person, during the course of which the defendant placed both hands inside the plaintiff's pants.

26. One of the individual defendants handcuffed plaintiff Nelson Gomez-Ortiz.

27. Defendant “Jane Doe” conducted a search of plaintiff Nelson Gomez-Ortiz’ vehicle.

28. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” arrested plaintiff Nelson Gomez-Ortiz on charges of Criminal Sale of Marijuana in the 4th Degree, Criminal Possession of Marijuana in the 5th Degree, and Unlawful Possession of Marijuana.

29. Plaintiff Nelson Gomez-Ortiz had not sold marijuana.

30. Plaintiff Nelson Gomez-Ortiz was not in possession of any marijuana.

31. The charges on which defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” arrested plaintiff Nelson Gomez-Ortiz were false.

32. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” did not have a warrant or other legal process authorizing the arrest of plaintiff Nelson Gomez-Ortiz.

33. The defendants transported plaintiff Nelson Gomez-Ortiz to the 48th Precinct, where the plaintiff was imprisoned.

34. At the 48th Precinct, plaintiff Nelson Gomez-Ortiz was required to remove his clothing and to submit to a visual cavity search.

35. Plaintiff Nelson Gomez-Ortiz was subsequently transported to Bronx Central Booking, where he continued to be imprisoned.

36. On the night of October 2 - October 3, 2014, plaintiff Nelson Gomez-Ortiz was arraigned in the Criminal Court of the City of New York, County of Bronx, under docket No. 2014BX053144, under the name Nelson Ortiz-Gomez, and released on his own recognizance.

37. On August 20, 2015, the criminal charges against plaintiff Nelson Gomez-Ortiz were adjourned in contemplation of dismissal.

COUNT ONE
FALSE IMPRISONMENT UNDER 42 U.S.C. §1983

38. Plaintiffs incorporate by reference paragraphs 1 through 37 of this complaint as though the same were set forth fully herein.

39. The seizure, detention, arrest, and imprisonment of plaintiff Nelson Gomez-Ortiz by defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” were made without any warrant or other legal process directing or authorizing his seizure, detention, arrest, or imprisonment.

40. The seizure, detention, arrest, and imprisonment of plaintiff Nelson Gomez-Ortiz were made without probable cause to believe that he had committed a crime or offense.

41. The charges upon which defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” arrested plaintiff Nelson Gomez-Ortiz were false.

42. The charges were made by defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” against plaintiff Nelson Gomez-Ortiz with knowledge that they were false.

43. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” acted in concert in the unconstitutional arrest of plaintiff Nelson Gomez-Ortiz and/or could have intervened to stop the arrest.

44. Plaintiff Nelson Gomez-Ortiz was aware of his seizure, detention, arrest and imprisonment by defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe”.

45. Plaintiff Nelson Gomez-Ortiz did not consent to his seizure, detention, arrest or imprisonment.

46. As a result of the foregoing, plaintiff Nelson Gomez-Ortiz was deprived of his liberty, imprisoned, greatly embarrassed and humiliated, and subjected to mental and physical distress.

47. The seizure, detention, arrest and imprisonment of plaintiff Nelson Gomez-Ortiz deprived him of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States.

48. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” were acting under color of state law when they seized, detained, arrested and imprisoned plaintiff Nelson Gomez-Ortiz.

49. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, detaining, arresting and imprisoning plaintiff Nelson Gomez-Ortiz on false criminal charges.

COUNT TWO
SEARCH OF PLAINTIFF’S VEHICLE UNDER 42 U.S.C. §1983

50. Plaintiffs incorporate by reference paragraphs 1 through 49 of this complaint as though the same were set forth fully herein.

51. Defendant “Jane Doe” conducted the search of plaintiff Nelson Gomez-Ortiz’ vehicle after the plaintiff had been removed from the vehicle and handcuffed.

52. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” did not have a warrant authorizing the search of plaintiff Nelson Gomez-Ortiz’ vehicle.

53. There were no exigent circumstances justifying a search of the vehicle following the arrest and removal of plaintiff Nelson Gomez-Ortiz from the vehicle.

54. The warrantless search of plaintiff Nelson Gomez-Ortiz’s vehicle violated the plaintiff’s right to be secure in his person and effects against unreasonable searches and seizures

guaranteed by the Fourth Amendment of the Constitution of the United States.

55. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” acted in concert in the unconstitutional search of plaintiff Nelson Gomez-Ortiz’ vehicle and/or could have intervened to stop the search.

56. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” were acting under color of state law when they searched plaintiff Nelson Gomez-Ortiz’ vehicle.

57. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person and effects against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by searching the plaintiff’s vehicle.

COUNT THREE
STRIP AND VISUAL BODY CAVITY SEARCH UNDER 42 U.S.C. §1983

58. Plaintiff incorporates by reference paragraphs 1 through 57 of this complaint as though the same were set forth fully herein.

59. The strip and visual body cavity search of plaintiff Nelson Gomez-Ortiz was made without any warrant or other legal process directing or authorizing such a search of his person.

60. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” lacked a factual basis to support a reasonable suspicion that plaintiff Nelson Gomez-Ortiz had evidence or contraband concealed inside a body cavity.

61. The strip and visual body cavity search of plaintiff Nelson Gomez-Ortiz conducted at the 48th Precinct deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States.

62. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” acted in concert in the unconstitutional visual body cavity search of plaintiff Nelson Gomez-Ortiz and/or could have intervened to stop the search.

63. The strip and visual body cavity search of plaintiff Nelson Gomez-Ortiz at the 48th Precinct deprived the plaintiff of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States.

64. Plaintiff Nelson Gomez-Ortiz suffered anxiety, embarrassment, humiliation and emotional distress as a result of the strip and visual body cavity search conducted by the defendants.

65. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” were acting under color of state law when they subjected plaintiff Nelson Gomez-Ortiz to a visual cavity search at the 48th Precinct.

66. Defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by conducting a visual cavity search of plaintiff Nelson Gomez-Ortiz at the 40th Precinct.

COUNT FOUR
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

67. Plaintiff incorporates by reference paragraphs 1 through 66 of this Complaint as though the same were set forth fully herein.

68. The seizure, arrest and imprisonment of plaintiff Nelson Gomez-Ortiz were carried out by defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” in their capacities as

police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

69. The seizure, arrest and imprisonment of plaintiff Nelson Gomez-Ortiz were carried out by defendants Guy Gargano, Jodi Brown, Mack Lipinski and “Jane Doe” in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

70. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of arresting persons on insufficient evidence in violation of the Fourth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

71. The aforesaid customs, policies, usages, practices, procedures, and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;
- (b) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (c) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during warrantless arrests;
- (d) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth and Fourteenth Amendments of the Constitution of the United States;

- (e) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist.

72. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact, and more particularly, plaintiff Nelson Gomez-Ortiz.

73. The arrest and imprisonment of plaintiff Nelson Gomez-Ortiz on October 1, 2014 resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause and the requirements for warrantless arrests.

74. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests without probable cause.

75. Defendant The City of New York deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards of probable cause and the requirements for making warrantless arrests.

COUNT FIVE
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

76. Plaintiffs incorporate by reference paragraphs 1 through 75 of this Complaint as though the same were set forth fully herein.

77. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of performing strip and visual cavity searches of persons charged

with crimes in violation of the Fourth Amendment of the Constitution of the United States.

78. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of performing strip and visual cavity searches of persons under arrest despite the absence of a factual basis for a reasonable suspicion to believe that the persons had evidence or contraband concealed within a body cavity.

79. The aforesaid custom, policy, and practice of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the circumstances under which arrested individuals can be subjected to strip and visual cavity searches;
- (b) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during the processing of arrested individuals;
- (c) Defendant The City of New York failed properly to supervise police officers during the processing of arrests to ensure that strip and visual cavity searches were not performed where no factual basis existed for a reasonable suspicion that the person arrested had evidence concealed in a body cavity;
- (d) Defendant The City of New York failed to discipline police officers for performing strip and visual cavity searches under circumstances in which no factual basis existed for a reasonable suspicion that the person arrested had evidence concealed in a body cavity.

80. The strip and visual cavity search to which plaintiff Nelson Gomez-Ortiz was subjected resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards and requirements for visual cavity searches.

81. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of performing strip and visual cavity searches of individuals under arrest despite the absence of a factual basis for a reasonable suspicion that the persons have evidence or contraband concealed within a body cavity.

82. Defendant The City of New York deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by formulating and implementing a policy, custom or practice of performing strip and visual cavity searches of individuals under arrest despite the absence of a factual basis for a reasonable suspicion that the persons had evidence or contraband concealed within a body cavity.

COUNT SIX
MUNICIPAL LIABILITY UNDER 42 U.S.C. §1983

83. Plaintiffs incorporate by reference paragraphs 1 through 82 of this Complaint as though the same were set forth fully herein.

84. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, lawsuits, claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants Guy Gargano, Jodi Brown, Mack Lipinski and "Jane Doe" are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

85. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

86. Upon information and belief, defendant The City of New York failed to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights.

87. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights

constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

88. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Nelson Gomez-Ortiz would be violated.

89. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals with whom its police officers come in contact, and more particularly, the civil rights of plaintiff Nelson Gomez-Ortiz.

90. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

91. Defendant The City of New York deprived plaintiff Nelson Gomez-Ortiz of his right to be secure in his person against of unreasonable searches and seizures guaranteed by the Fourth Amendment of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public.

COUNT SEVEN
COMMON LAW ASSAULT AND BATTERY

92. Plaintiff incorporates by reference paragraphs 1 through 91 of this Complaint as though the same were set forth fully herein.

93. Defendants Guy Gargano, Jodi Brown, Mack Lipinski, “Jane Doe” and the City of New York committed an assault and battery on the person of plaintiff Nelson Gomez-Ortiz by pulling the plaintiff out of a motor vehicle.

94. As a result of the foregoing, plaintiff Nelson Gomez-Ortiz experienced pain, physical and emotional distress, hardship and anxiety.

COUNT EIGHT
COMMON LAW ASSAULT AND BATTERY

95. Plaintiff incorporates by reference paragraphs 1 through 94 of this Complaint as though the same were set forth fully herein.

96. Defendants Guy Gargano, Jodi Brown, Mack Lipinski, “Jane Doe” and the City of New York committed an assault and battery on the person of plaintiff Nelson Gomez-Ortiz by placing hands inside the plaintiff’s pants in the course of searching him after removing him from a motor vehicle.

97. As a result of the foregoing, plaintiff Nelson Gomez-Ortiz experienced pain, physical and emotional distress, hardship and anxiety.

COUNT NINE
COMMON LAW ASSAULT AND BATTERY

98. Plaintiff incorporates by reference paragraphs 1 through 97 of this Complaint as though the same were set forth fully herein.

99. Defendants Guy Gargano, Jodi Brown, Mack Lipinski, “Jane Doe” and the City of New York committed an assault and battery on the person of plaintiff Nelson Gomez-Ortiz by handcuffing the plaintiff.

100. As a result of the foregoing, plaintiff Nelson Gomez-Ortiz experienced pain, physical and emotional distress, hardship and anxiety.

COUNT TEN
COMMON LAW FALSE IMPRISONMENT

101. Plaintiff incorporates by reference paragraphs 1 through 100 of this Complaint as though the same were set forth fully herein.

102. Defendants Guy Gargano, Jodi Brown, Mack Lipinski, “Jane Doe” and The City of New York falsely imprisoned plaintiff Nelson Gomez-Ortiz by seizing, arresting and imprisoning him on false criminal charges of Criminal Sale of Marijuana in the 4th Degree, Criminal Possession of Marijuana in the 5th Degree, and Unlawful Possession of Marijuana.

103. As a result of the foregoing, plaintiff Nelson Gomez-Ortiz was deprived of his liberty, was imprisoned, was subjected to mental and physical distress, and suffered embarrassment and humiliation.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests that this Court grant the following relief:

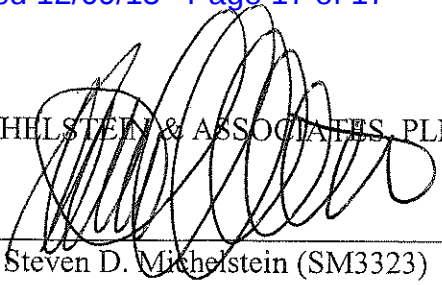
- A. Award the plaintiffs compensatory damages to be determined by the jury at the time of trial;
- B. Award the plaintiffs punitive damages to be determined by the jury at the time of trial;
- C. Award the plaintiffs reasonable attorneys' fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and
- D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiff requests a jury trial on all questions of fact raised by their Complaint.

Dated: New York, New York
December 9, 2015

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